192190

Ordinance

Add Code to prohibit the sale or provision of certain force-fed poultry products (add Code Chapter 17.110)

Passed

Amended by Council

The City of Portland ordains.

Section 1. The Council finds:

1. "Foie gras" is a food item produced from the diseased and enlarged liver of a duck or goose. The production of foie gras usually involves systematically force-feeding the animal until their liver becomes diseased and has enlarged up to ten times its normal size.
2. The humane treatment of animals is of particular concern to residents of the City of Portland.
3. The practice of force-feeding birds for foie gras production is widely considered by veterinary professionals to be inhumane because it involves inserting a metal or plastic tube down a bird's throat and injecting unhealthy quantities of feed into the stomach. Force-feeding induces liver disease in the birds, which is painful and often fatal. The process also causes the animals significant injury and illness, including bacterial and fungal infections, malnourishment, and/or lameness.
4. The modern foie gras production industry contributes to environmental degradation and climate change by keeping animals in conditions of intensive confinement that require large amounts of water and energy, pollute air and waterways, and threaten wild endangered species.
5. As a result of the treatment and conditions they are subjected to, birds on foie gras factory farms have weakened immune systems, making them especially susceptible to avian influenza (bird flu) infections, which can spread to humans and lead to disease outbreaks. This is of particular concern in light of the recent Covid-19 pandemic.
6. It is in the public interest to avoid supporting animal cruelty, unsustainable environmental practices, and zoonotic disease risks by removing force-fed products from the marketplace. It is also in the

Document number

2026-149

Changes

Ordinance 192190

December 31, 2026

Section 17.110.030 Prohibited Conduct shall be in effect 180 days following the effective date of Ordinance 192190.

View all changes

Introduced by

Councilor Mitch Green; Council President Jamie Dunphy; Councilor Angelita Morillo; Councilor Tiffany Koyama Lane

Contact

Maria Sipin

Chief of Staff, Councilor Mitch Green in District 4

maria.sipin2@portlandoregon.gov

Jacque Dixon

Interim Chief of Staff, Councilor Jamie Dunphy

Jacque.Dixon@portlandoregon.gov

public interest to codify values related to the humane treatment of animals, public health, and environmental stewardship. Therefore, the Council finds it necessary to enact this regulation in the City of Portland in order to achieve these goals.

7. This Ordinance will not require additional funds for implementation.

NOW, THEREFORE, the Council directs:

A. Add City Code Chapter 17.110 as shown in Exhibit A.

B. Section 17.110.030 Prohibited Conduct shall be in effect 180 days following the effective date of this ordinance to allow the public and affected businesses and institutions time for the necessary transition.

Exhibits and attachments

- Failed amendment - Zimmerman 1 (June 4, 2026) 29.35 KB
- Approved amendment as amended - Clark 1 (May 26, 2026) 49.95 KB
- Exhibit A 66.63 KB
- Supplemental information - FAQs 138.86 KB
- Supplemental information - epidemiological update avian influenza in the Americas region 16.89 MB
- Supplemental information - written testimony for 2026-033 14.85 MB
- Supplemental information - presentation to Arts and Economy Committee 1.02 MB
- Presentation 17.1 MB
- Testimony 9.53 MB

An ordinance when passed by the Council shall be signed by the Auditor. It shall be carefully filed and preserved in the custody of the Auditor (City Charter Chapter 2 Article 1 Section 2-122)

Passed as amended by Council
June 4, 2026

Auditor of the City of Portland
Simone Rede

Impact Statement

Purpose of proposed legislation and background information

Foie gras (ˈfwä-ˈgrä) - French for "fatty liver" refers to a luxury food made from the diseased liver of a duck or goose. Foie gras is typically produced by force-feeding ducks and geese until their livers fatten to as much as 10 times their normal, healthy size. This process has been widely denounced as inhumane by both veterinary professionals and the general public. After enduring weeks of being force-fed multiple times a day, the birds are slaughtered and their livers are processed to be sold as foie gras.

Andre Miller

Chief of Staff, Councilor Angelita Morillo

Andre.Miller3@Portlandoregon.gov

Mary Li

Head of Staff, Councilor Tiffany Koyama Lane

mary.li@portlandoregon.gov

Agenda type

Regular

Date and time information

Meeting date: June 4, 2026

Amount of time requested: 1 hour

Changes City Code

In addition to animal welfare concerns, foie gras production poses a risk to public health and the environment. Because of the constant abuse they suffer, ducks and geese on factory foie gras farms have weakened immune systems. This makes them especially susceptible to avian influenza (bird flu). Bird flu is a zoonotic disease that can spread to humans. The foie gras industry also produces many environmental hazards, including: wasting large amounts of water and energy, polluting air and waterways with manure and slaughter waste, and threatening wild endangered species.

Oregon law recognizes all animals as sentient beings capable of experiencing pain, stress, and fear (ORS 167.305). It also provides that animals should be cared for in ways that minimize pain, stress, fear, and suffering. The City of Portland also has a vested interest in promoting responsible and sustainable business practices. As such, it is in the public's interest to codify laws related to the humane treatment of animals and environmental protection by banning force-fed poultry products from the marketplace.

Similar sales bans have been passed in the State of California; Brookline, Massachusetts; and Pittsburgh, Pennsylvania. Twenty-eight countries around the world have banned either the production, sale, or import of foie gras. Portland has led on regulatory measures that promote sustainable business practices throughout our history and it's long past time we join other communities around the world on this one.

Financial and budgetary impacts

This ordinance does not adjust or reallocate resources for staffing. Implementation by the administration may require prioritization of allocated resources as businesses come into compliance with the regulatory framework outlined in code.

Economic and real estate development impacts

Restaurants, grocery stores, and other food markets that currently sell force fed poultry products are the main types of businesses that will be impacted by this regulatory measure. 60 days of additional lead time for enforcement of the sales ban have been built in to this proposal to allow additional time for impacted businesses to come into compliance following passage as any remaining stock is sold.

Community impacts and community involvement

Portlanders have organized demonstrations at various businesses in the past demanding that force-fed poultry products be removed from their menu, causing disruptions for business. This proposal provides a mechanism by which Portlanders can pursue similar outcomes and provide room for continued business operation. One concern that some stakeholders within the food scene have articulated before is that they may

experience some challenges in coming into compliance with a ban as they sell off their remaining stock of force-fed poultry products. To accommodate this concern this proposal has additional lead time built into its implementation to allow for impacted businesses to sell their remaining stock as they come into compliance.

100% renewable goal

Not applicable.

Economic and real estate development analysis

Analysis provided by Prosper Portland

Prosper Portland staff has reviewed the Economic and Real Estate Development Impact Analysis submitted for this action and finds that it satisfies the requirements set forth in City Council Resolution 37664. The analysis is sufficiently detailed and complete to be considered a final statement for purposes of this action.

Document history

Document number: 2026-149

President's referral: City Council

Agenda	Council action
April 29, 2026 Regular agenda City Council	**Continued**
May 27, 2026 Regular agenda City Council	**Passed to second reading as amended** Motion to amend Clark 1 to change ordinance to be in effect 180 days following the effective date of the ordinance: Moved by Green and seconded by Kanal. (Aye (9): Kanal, Koyama Lane, Morillo, Novick, Clark, Green, Avalos, Smith, Dunphy; Nay (3): Pirtle-Guiney, Ryan, Zimmerman) Motion to amend ordinance as shown in Clark 1 as amended: Moved by Clark and seconded by Smith. (Aye (12): Kanal, Pirtle-Guiney, Ryan, Koyama Lane, Morillo, Novick, Clark, Green, Zimmerman, Avalos, Smith, Dunphy) Motion to appeal the ruling of the presiding officer and put the following question before the Council, “Shall the

Agenda	Council action
	ruling of the presiding officer stand to move item to second reading?": Moved by Zimmerman and seconded by Ryan. (Aye (6): Kanal, Morillo, Novick, Green, Avalos, Dunphy; Nay (5): Pirtle-Guiney, Ryan, Clark, Zimmerman, Smith; Absent (1): Koyama Lane). Motion to appeal fails. The ruling of the presiding officer stands and the item is passed to second reading as amended. Passed to second reading as amended June 4, 2026 at 2:00 pm.
June 4, 2026 Regular agenda City Council	**Passed as amended** Motion to amend the ordinance as shown in Zimmerman 1: Moved by Zimmerman and seconded by Ryan. (Aye (5): Pirtle-Guiney, Ryan, Clark, Zimmerman, Smith; Nay (7): Kanal, Koyama Lane, Morillo, Novick, Green, Avalos, Dunphy). Motion failed to pass. **Aye (7):** Kanal, Koyama Lane, Morillo, Novick, Green, Avalos, Dunphy **Nay (5):** Pirtle-Guiney, Ryan, Clark, Zimmerman, Smith